THE PAKISTAN ELECTRONIC MEDIA REGULATORY AUTHORITY ORDINANCE, 2002

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THE PAKISTAN ELECTRONIC MEDIA REGULATORY AUTHORITY ORDINANCE, 2002.

ORDINANCE NO. XIII OF 2002

[*1st March, 2002*]

AN

ORDINANCE

to regulate [1][electronic] media in Pakistan

WHEREAS it is expedient to provide for the development of [1][electronic] media in order to—

(i) improve the standards of information, education and entertainment;

[2][(ii) enlarge the choice available to the people of Pakistan in the media for authentic news, current affairs, religious knowledge, tolerance, art, culture, science, technology, economic and energy development, social sector concerns, music, sports, drama, children content and other subjects of public and national interest;]

(iii) facilitate the devolution of responsibility and power to the grass-roots by improving the access of the people to *mass media* at the local and community level; [2][*]

(iv) ensure accountability, transparency and good governance by optimizing the free flow of information;

[2][(v) ensure timely payment of salary to the electronic media employees working with the licensee of the Authority; and]

[2][(vi) ensure fair, transparent, and independent rating to broadcasters for their TV channels.]

AND WHEREAS, the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE**,** in pursuance of Proclamation of Emergency of the fourteenth day of October, 1999 and the Provisional Constitution Order No.1 of 1999 read with the Provisional Constitution (Amendment) Order No. 9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

PRELIMINARY

1. Short title, extent and commencement.— (1) This Ordinance shall be called the Pakistan Electronic Media Regulatory Authority Ordinance, 2002.

(2) It extends to the whole of [3][Islamic Republic of] Pakistan.

(3) It shall come into force at once.

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[1]Subs. by the Pakistan Electronic Media Regulatory Authority (Amdt.) Act, 2007 (Act II of 2007), s.2, for "broadcast".

[2]Subs. omitted and added by Act LXI of 2023, s.2.

[3]Ins. by the Pakistan Electronic Media Regulatory Authority (Amdt.) Act, 2007 (Act II of 2007), s. 3.

2. Definitions.— In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "advertisement" means a set of visual and audio messages for the projection of a product, service, or idea with the object of propagating sale, purchase or hire of the product, service or idea for creating other related effects;

(b) "Authority" means the Pakistan Electronic Media Regulatory Authority (PEMRA) established under section 3;

[1][(c) "broadcast media" means such media which originate and propagate broadcast and pre- recorded signals by terrestrial means or through satellite for radio or television and includes teleporting, provision of access to broadcast signals by channel providers and such other forms of broadcast media as the Authority may, with the approval of the Federal Government, by notification in the official Gazette, specify;]

[1][(ca) "broadcast station" means physical, technical and software infrastructure for the operation of radio or television and also includes satellite uplinking from ground, repeaters and all such other accessories;]

(d) "broadcaster" means a person engaged in broadcast media [1][except broadcast journalists not actively involved in the operation, ownership, management or control of the broadcast media];

[1][(da) "Cable TV" means reception of broadcast and prerecorded signals from different channels and their distribution to subscribers through a set of closed transmission paths;]

(e) "Chairman" means the Chairman of the Authority;

[1][(ea) "Chairperson" means the head of a Council of Complaint;]

(f) "channel" means the set of frequencies that a broadcast station occupies for broadcasting;

[1][(fa) "channel provider" means a vendor who represents local or foreign channels and provides access of their signal to a distribution service;]

(g) "company" a company as defined in the Companies [2][Act, 2017 (XIX of 2017)];

(h) "copyright" means copyright as defined in the Copyright Ordinance, 1962 (XXXIV of 1962);

[2][(ha) "disinformation" means verifiably false, misleading, manipulated, created or fabricated information which is disseminated or shared with the intention to cause harm to the reputation of or to harass any person for political, personal, or financial interest or gains without making an effort to get other person's point of view or not

[1]Subs. and Ins. by the Pakistan Electronic Media Regulatory Authority (Amdt.) Act, 2007 (Act II of 2007), s. 4.
[2]Subs. and Ins. by Act LXI of 2023, s.3.

giving it proper coverage and space but does not include misinformation;]

[1][[2][(haa)]"distribution service" means a service which receives broadcast and pre-recorded signals from different channels and distributes them to subscribers through cable, wireless or satellite options and includes Cable TV, LMDS, MMDS, DTH and such other similar technologies;

(hb) "DTH" means Direct to Home distribution of audiovisual signals received *via* satellite to small dish antennas across the foot-print of the satellite to subscribers;

(hc) "electronic media" includes the broadcast media and distribution services;]

[2][(hd) "electronic media employee" shall mean and include a person working as an employee with the licensee of the Authority;]

(i) "foreign company" means a company or body corporate organized, and registered under the laws of a foreign government;

(j) "frequency" means the frequency of the electromagnetic wave number measured in Hertz per second and used for transmission;

(k) "FAB" means the Frequency Allocation Board established under section 42 of the Pakistan Telecommunication (Reorganization) Act, 1996 (XVII of 1996);

[1][(ka) "illegal operation" means the broadcast or transmission or distribution of, or provision of access to, programmes or advertisements in the form of channels without having a valid licence from the Authority;

(kb) "LMDS" means local multipoint distribution service to transmit audio-visual signals through wireless devices, on a higher frequency range for the provision of cable television service;]

(l) "media enterprise" means an enterprise concerned with the publication of a printed newspaper or [3][a broadcast media or distribution service];

[2][(la) "misinformation" means verifiable false content or information that is unintentionally disseminated or shared;]

[1][[2][(laa)] "MMDS" means multi-channel multi-point distribution service to transmit audio-visual signals through wireless devices, to multiple subscribers, after receiving such signals from other channels of communication;]

[1][(m) "licence" means a licence issued by the Authority to establish and operate a broadcast media or distribution service;]

(n) "licensee" means a person to whom the Authority has issued a licence;

[1][(na) "newspaper" means a newspaper as defined by the Press, Newspapers, News Agencies and Books Registration Ordinance, 2002(XCVIII of 2002);]

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[1]Ins., and subs. by the Pakistan Electronic Media Regulatory Authority (Amdt.) Act, 2007 (Act II of 2007), s. 4.
[2]Re-numbered and Ins. by Act LXI of 2023, s.3.
[3]Subs. by the Pakistan Electronic Media Regulatory Authority (Amdt.) Act, 2007 (Act II of 2007), s. 4, for "Journal, a radio or television broadcast station or cinema theatre".

(o) "member" means a member of the Authority;

(p) "national broadcaster" means the Pakistan Broadcasting Corporation, the Pakistan Television Corporation and the Shalimar Recording and Broadcasting Company;

(q) "PTA" means the Pakistan Telecommunication Authority established under the Pakistan Telecommunication (Reorganisation) Act, 1996 (XVII of 1996);

(r) "person" includes an individual, partnership, association, company, trust or [1][. corporation or public body] ;

(s) "prescribed" means prescribed by the rules [2][or regulations] made by the Authority;

(t) "programme" means the systematic broadcasting of visual or sound images by a broadcast station but does not include an advertisement; [2][*]

[2][(ta) "regulations" means the regulations made under this Ordinance;]

(u) "rules" means the rules made under this Ordinance [2][;]

[1][(ua) "severe violation" means a violation of this Ordinance or violation of Article 19 of the Constitution of the Islamic Republic of Pakistan;]

[2][(v) "teleport" means a facility with installed equipment used or required in the process of uplinking or downlinking of audio-visual programmes and signals between an earth station and a satellite; [1][*]

[1][(va) "timely payment of **dues**" means the payment of **dues** when made to the electronic media employee within two months; and]

(w) "uplinking" Means transmission of audio-video signal from ground transmission facility to a satellite in order to transmit any programme within or outside Pakistan.]

3. Establishment of the Authority.— (1) As soon as may be, after the commencement of this Ordinance, the Federal Government shall, by notification in the official Gazette, establish an authority to be known as the Pakistan Electronic Media Regulatory Authority (PEMRA) for carrying out the purposes of this Ordinance.

(2) The Authority shall be a body corporate having perpetual succession and a common seal with powers subject to the provision of this Ordinance to hold and dispose of property by the said name, sue and be sued.

(3) The principal office of the Authority shall be at Islamabad and it may set up offices at such place or places in the country as it may deem appropriate.

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[1]Subs., Ins. and Omitted by Act LXI of 2023, s.3.
[2]Ins., omitted and subs. by the Pakistan Electronic Media Regulatory Authority (Amdt.) Act, 2007 (Act II of 2007), s. 4.

(4) No act or proceeding of the Authority shall be invalid by reason only of the existence of a vacancy in, or defect in the constitution of, the Authority.

[1][**4. Functions of the Authority.—** (1) The Authority shall be responsible for regulating the establishment and operation of all broadcast media and distribution services in Pakistan established for the purpose of international, national, provincial, district, local or special target audiences.

(2) The Authority shall regulate the distribution of foreign and local TV and radio channels in Pakistan.

(3) The Authority may, by notification in the official Gazette, make regulations and also issue determinations for carrying out the purposes of this Ordinance.]

[2][(4) The Authority by registering rating companies shall ensure that a fair, transparent, and independent forums shall issue rating to the licensees.]

5. Power of the Federal Government to issue directives.— The Federal Government may, as and when it considers necessary, issue directives to the Authority on matters of policy, and such directives shall be binding on the Authority, and if a question arises whether any matter is a matter of policy or not, the decision of the Federal Government shall be final.

6. Members of Authority.— (1) The Authority shall consist of a Chairman and [1][twelve] members to be appointed by the President of Pakistan.

(2) The Chairman of the Authority shall be an eminent professional of known integrity and competence having substantial experience in media, business, management, finance, economics or law.

[2][(2A) The division to which business of this Ordinance stands allocated shall recommend a panel of five candidates fulfilling the conditions of sub-section (2) and send it to a parliamentary committee consisting of four members two from the National Assembly and two from the Senate to be nominated by the Speaker of the National Assembly and the Chairman of the Senate respectively out of which one shall be from the treasury benches and one from the opposition in each House and the parliamentary committee shall consider the panel and recommend one candidate for appointment by the President under sub-section (1) and where the parliamentary committee fails to recommend within thirty days of receipt of the panel any person, the division concerned shall forward the panel to the Prime Minister who shall recommend to the President the candidate eminently suited to be appointed as Chairman by the President:

Provided that at any time when the National Assembly stands dissolve, all members of the parliamentary committee shall be from the Senate nominated by the Chairman Senate.]

(3) Out of [1][twelve] members one shall be appointed by the [3][Prime Minister] on full time basis and five shall be eminent citizens chosen to ensure representation of all provinces with expertise in one or more of the following fields: media, law, human rights, and social service. Of the five members from the general public, two members shall be women.

[1]Subs. by the Pakistan Electronic Media Regulatory Authority (Amdt.) Act, 2007 (Act II of 2007), ss. 5-6.
[2]Added and Ins. by Act LXI of 2023, ss.3A-4.
[3]Sub. by Act No. XXIV of 2026, s.2.

(4) Secretary, Ministry of Information and [1][Broadcasting, Secretary, Interior Division, Chairman, Pakistan Telecommunication Authority and Chairman, Central Board of Revenue] shall be the *ex-officio* members.

[2]**[(4A). The remaining two members shall, [3][Prime Minister] be appointed on need basis on recommendation of the Chairman and they shall be non-voting honorary members, one from broadcasters and one from Pakistan Federal Union of Journalists (PFUJ).]**

(5) The members, [1][* * * * * * *] shall receive such fee and expenses for each meeting as may be prescribed.

[1][(6) A member, other than an *ex officio* member, shall be deemed to have vacated his office if he absents himself for three consecutive meetings of the Authority without the leave of the Authority.]

7. Tenure of members.— (1) The Chairman and members, other than *ex-officio* members, unless earlier removed for misconduct or physical or mental incapacity, shall hold office for a period of four years and shall be eligible for re-appointment for a similar term or as the [3][Prime Minister] may determine:

Provided that the Chairman and a member shall retire on attaining the age of sixty-five years.

Explanation.— For the purposes of this section the expression "misconduct" means conviction for any offence involving moral turpitude and includes conduct prejudicial to good order or unbecoming of a gentleman.

(2) The Chairman or a member may, by writing under his hand, resign his office.

8. Meetings of the Authority, etc.— (1) The Chairman or, in his absence, the member elected by the members for the purpose, shall preside at a meeting of the Authority.

(2) One-third of the total members shall constitute a quorum for meetings of the Authority requiring a decision by the Authority.

(3) The members shall have reasonable notice of the time and place of the meeting and the matters on which a decision by the Authority shall be taken in such meeting.

[2][(3A) Meetings of the Authority may also take place through modern devices including but not limited to video link.]

(4) The decisions of the Authority shall be taken by the majority of its members present, and in case of a tie, the member presiding a meeting shall have a casting vote.

(5) All orders, determinations and decisions of the Authority shall be taken in writing [2][* * *].

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[1]Subs., omitted and added by the Pakistan Electronic Media Regulatory Authority (Amdt.) Act, 2007 (Act II of 2007), s. 6.
[2]Subs., Ins. and omitted by Act LXI of 2023, s.4
[3]Subs. by Act No. XXIV of 2026, ss. 2-3.

9. Remuneration, of Chairman and members.— (1)The Chairman and members shall be paid such emoluments as the President of Pakistan may determine and shall not be varied to their disadvantage during their term of office.

10. Chairman and members not to engage themselves in certain business, etc.— (1) The Chairman shall not, during his term of office, engage himself in any other service, business, vocation or employment, or enter into the employment of, or accept any advisory or consultancy relationship with any person or entity engaged in applying for a licence from the Authority or operating a broadcast station established within the purview of the Authority or in providing services or products to the Authority on any of the projects, schemes, proposals or plans undertaken, executed or supervised by the Authority or any related undertaking of such aforesaid person or entity.

(2) The members shall not have any direct or indirect financial interest, or have any connection with any such person, entity or related undertaking as mentioned in sub-section (1) of this section associated in any way with the licensee of a broadcast station for so long as they are members and hold office.

11. Officers, employees, etc.— To carry out the purposes of this Ordinance, the Authority may, from time to time, appoint members of its staff, experts, consultants, advisers and other officers and employees on such terms and conditions as [1][may be prescribed by regulations].

12. Officers, etc. deemed to be public servants.— The Chairman, members, members of its staff, other officers and employees of the Authority shall be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860).

[1][13. Delegation.— The Authority may delegate to the Chairman or a member or officer of the Authority, any of its powers, responsibilities or functions under this Ordinance as it may by regulations prescribe:

Provided that the delegation of such power shall not include the power to grant, revoke or cancel a broadcast media or distribution service licence except cable TV:

Provided further that to the extent of suspension of broadcast media licence, the Authority may delegate its power to Chairman and two members of the Authority.]

14. Fund.— (1) There shall be established a fund to be known as "PEMRA Fund" which shall vest in the Authority and shall be utilized by the Authority to meet charges in connection with its functions including payment of salaries and other remunerations to the Chairman, members, [2][employees], experts and consultants of the Authority.

(2) The Fund shall consist of.—

(i) seed money by the Federal Government;

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[1]Subs. by Act LXI of 2023, ss.6-7

[2]Subs. by the Pakistan Electronic Media Regulatory Authority (Amdt.) Act, 2007 (Act II of 2007), s.8, for servants.

(ii) fees for issuance [1] [and renewal] of licences for establishing and operating broadcast or CTV stations;

(iii) loans obtained with the special or general sanction of the Federal Government;

(iv) foreign aid obtained with sanction of and on such terms and conditions as may be approved by the Federal Government; and

(v) all other sums received by the Authority from any other source.

(3) The Authority may open and operate one or more accounts in local, or foreign currency, in any scheduled bank.

[1][(4) The Authority may invest its funds in such investments as it may, from time to time, determine.]

15. Budget.— The Authority shall, in respect of each financial year, prepare its own budget and submit it to the Federal Government three months before the commencement of every financial year for information.

16. Accounts and Audit.— (1) The Authority shall maintain complete and accurate books of accounts of its actual expenses and receipts in such form as the Federal Government may, in consultation with the Auditor General of Pakistan, determine.

(2) The Authority shall cause to be carried out audit of its accounts by one or more auditors who are chartered accountants within the meaning of the Chartered Accountants Ordinance, 1961 (X of 1961).

(3) Notwithstanding the audit provided in sub-section (2) the Auditor-General shall have the power to audit or cause to be audited the accounts of the Authority.

17. Annual report.— The Authority shall compile and submit an annual report on its operations and accounts for each financial year to the President of Pakistan and shall also arrange for its publication and circulation to the media and the public.

[2][**18. Categories of licences.—** (1) The Authority shall issue licences for broadcast media and distribution service in the following categories, namely:—

i. international and national scale stations;

ii. provincial scale broadcast;

iii. local area community based radio and TV broadcast;

iv. specific and specialized subjects;

v. distribution services; and

[1]Ins. and Added by the Pakistan Electronic Media Regulatory Authority (Amdt.) Act, 2007 (Act II of 2007), s. 8.
[2]Subs. *ibid.*, s.9, for "section 18".

vi. uplinking facilities including teleporting and DSNG.

(2) The Authority may further sub-categorize the categories specified in sub-section (1) as it may deem fit.]

19. Licence to broadcast or operate.— [1][(1) The Authority shall have exclusive right to issue licences for the establishment and operation of all broadcast media and distribution services, provided that this exclusive right shall be used by the Authority in conformity with the principles of fairness and equity applied to all potential applicants for licences whose eligibility shall be based on prescribed criteria notified in advance and that this shall be done through an open, transparent bidding process:

Provided that the bidding shall be held if the number of applications exceeds the number of licences to be issued by the Authority.]

(2) No person shall engage in [1] [any broadcast media or distribution service] except after obtaining a licence issued under this Ordinance.

(3) Every licence shall be subject to such terms and conditions as may be prescribed.

[1][(4) The Authority shall have the power to determine number of licences to be issued in each category or sub-category and charge fees at such rates as the Authority may fix from time to time for the grant of a licence and for its annual renewal.]

[1][(5) The Authority shall devise a Code of Conduct for programmes and advertisements for compliance by the licensees.]

20. Terms and conditions of licence.— A [1][person] who is issued a licence under this Ordinance shall—

(a) [1][ensure preservation of] the sovereignty, security and integrity of the Islamic Republic of Pakistan;

(b) [1][ensure preservation of] the national, cultural, social and religious values and the principles of public policy as enshrined in the Constitution of the Islamic Republic of Pakistan;

[1][(c) ensure that all programmes and advertisements do not contain or encourage violence, terrorism, racial, ethnic or religious discrimination, sectarianism, extremism, militancy, hatred, pornography, obscenity, vulgarity or other material offensive to commonly accepted standards of decency;]

(d) comply with rules made under this Ordinance;

[1]Subs. and added by the Pakistan Electronic Media Regulatory Authority (Amdt.) Act, 2007 (Act II of 2007), ss. 10-11.

(e) broadcast [1][, if permissible under the terms of its licence,] programmes in the public interest specified by the [2][Secretary of the Division to which the business of this Ordinance stands allocated or the Authority in the manner Indicated by the Secretary] or, as the case may be, the Authority, provided that the duration of such mandatory programmes do not exceed ten percent of the total duration of broadcast or operation by a station in twenty-four hours except if, by its own volition, a station chooses to broadcast [1][* *] such content for a longer duration; [3][and such content will be in addition to preamble, and the licensee will also submit an annual compliance report to this effect or as and when required by the Authority;]

(f) comply with the codes of programmes and advertisements approved by the Authority [1][and appoint an in-house monitoring committee, under intimation to the Authority, to ensure compliance of the Code];

(g) not broadcast or distribute any programme or advertisement in violation of copyright or other property right;

[1][(h) obtain NOC from Authority before import of any transmitting apparatus for broadcasting, distribution or teleporting operation;]

(i) not sell, transfer or assign any of the rights conferred by the licence without prior written permission of the Authority [3][;]

[3][(j) not air disinformation;

(k) ensure that during a regular programme a continuous break for advertising shall not exceed five minutes and duration between two such successive breaks shall not be less than ten minutes; and

(l) ensure that the content of the channel available on electronic media, including logo and name, etc. shall not vary, alter, substitute, tempered on digital media or any other similar forum.]

[3]**[20A. Obligation of licensee to pay electronic media employees' dues timely**.— The licensee of the Authority shall ensure timely payment of dues not later than two months to the electronic media employees working with it.

20B. Government advertisements.— A licensee of the Authority shall comply with all decisions and orders of the Authority and the Council of Complaints for payment of outstanding **dues** to its employees. In case of non-compliance by the licensee, the Authority or, as the case may be, the Council of Complaints shall write to the division or department of the Federal Government or, as the case may be, the Provincial Government to which stands allocated the business in this behalf to stop release of TV or radio commercials to the licensee till the payment of pending **dues** to its employees.]

[1]Subs., omitted and Added by the Pakistan Electronic Media Regulatory Authority (Amdt.) Act, 2007 (Act II of 2007), s.11.
[2] Subs. by Act No. XXIV of 2026, s.4.
[3]Added, subs. and ins. by Act LXI of 2023, ss.8-9.

[1]**[21. Consultation with the Provinces.—** (1) The Authority shall, except where applications for the issuance of a licence relates to Islamabad Capital Territory, invite the comments of the Government of the Province concerned, with regard to the proposed location of the Radio, TV or MMDS station for which the application has been made, and if the concerned Provincial Government has any reservation to the issuance of the licence, the Authority shall invite the representative of the Provincial Government and consider its viewpoint before taking a decision on the issuance of a licence:

Provided that where the Provincial Government objects to the issuance of a particular licence, the applicant shall be provided an opportunity to be present at the meeting of the Authority and given an opportunity of being heard with regard to the observations made by the Provincial Government.

(2) Where the signal of a radio, TV or MMDS station has the potential to cover an area outside the limits of the Province in which the unit is proposed to be located, the Authority shall invite one or more representatives from the concerned Provincial Governments to express their viewpoint, if any, on the inter-Provincial dimensions of the signal.]

22. Duration for consideration of the application for a licence.— The Authority shall take decision on the application for a licence within one hundred days from the receipt of the application.

23. Exclusion of monopolies.— (1) No person shall be entitled to the benefit of any monopoly or exclusivity in the matter of broadcasting or the establishment and operation of broadcast [2][media or distribution service] or in the supply to, or purchase from, a national broadcaster of air time, programmes or advertising material and all existing agreements and contracts to the extent of conferring a monopoly or containing an exclusivity clause are, to the extent of exclusivity, hereby declared to be inoperative and of no legal effect.

[3][(2) In granting a licence, the Authority shall ensure that open and fair competition is facilitated in the operation of more than one media enterprise in any given unit of area or subject and that undue concentration of media ownership is not created in any city, town or area and the country as a whole:

Provided that if a licensee owns, controls or operates more than one media enterprise, he shall not indulge in any practice which may impede fare competition and provision of level playing field.]

24. Licence, application, issuance, refusal and validity.— [4][(1) Any person desirous of obtaining a licence for establishment and operation of broadcast media or a distribution service shall apply to the Authority in such manner and form as may be prescribed.]

(2) The Authority shall process each application in accordance with prescribed criteria and shall hold public hearings in the respective provincial capitals of each Province, or as the case may be, Islamabad, before granting or refusing the licence.

(3) Each application shall be accompanied by such fee as the Authority may prescribe.

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[1]Subs. by the Pakistan Electronic Media Regulatory Authority (Amdt.) Act, 2007 (Act II of 2007), s.12, "for section 21".
[2]Subs. *ibid*., s.13, for "or CTV stations".
[3]Subs. *ibid*., for "sub-section (2).
[4]Subs. *ibid*., s.14, for "sub-section (1)".

[1][(4) A licence of broadcast media shall be valid for a period of twenty years and distribution service licence shall be valid for a period not exceeding ten years from the issuance date subject to payment of annual fee, including late payment fee if any as may be prescribed from time to time but shall not include annual gross advertisement revenue in any form whatsoever.]

[1][(4A) Licence renewal fee shall be fifty percent of applicable fee of last bid price of the same category but shall not include annual gross advertisement revenue in any form whatsoever.]

(5) The Authority may renew a licence on such terms and conditions as may be prescribed, and in case of refusal to renew a licence reasons shall be recorded in writing.

25. Certain persons not be granted licence.— A licence shall not be granted to—

(a) a person who is not a citizen of Pakistan or resident in Pakistan;

(b) a foreign company organized under the laws of any foreign government; [2][*]

(c) a company the majority of whose shares are owned or controlled by foreign nationals or companies whose management or control is vested in foreign nationals or companies [2][; or]

[2][(d) any person funded or sponsored by a foreign government or organization.]

[1][26. Councils of Complaints.— (1) The [3][Prime Minister] shall, by notification in the official Gazette, establish Councils of Complaints for general public, bodies, etc. and for grievance of the electronic media employees regarding their wages, salaries, dues, etc. at Islamabad, the Provincial capitals and also at such other places as the [3][Prime Minister] may determine.

(2) Each Council shall receive and review complaints made by persons or organizations from general public against any aspects of programmes broadcast or distributed by a station established through a licence issued by the Authority and render opinions on such complaints.

(3) Each Council shall receive and review complaints made by the electronic media employees to the extent of the following matters only, namely:—

(a) payment of minimum wages policy; and (b) timely payment of their salaries,

and the Council shall render opinions and recommendations on such complaints to the Authority for appropriate decision or order.

(4) Each Council shall consist of a Chairperson and five members being citizens of eminence, having relevant experience and qualification as may be prescribed, from general public at least two of whom shall be women.

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[1]Subs. and Ins. by Act LXI of 2023, ss.10-11.
[2]Omitted, subs. and added by Act No. II of 2007, s.15.
[3]Subs. by Act No. XXIV 2026, s.5.

(5) The Chairperson or members, unless earlier removed for misconduct or physical or mental incapacity, shall hold office for a term of two years and shall be eligible for re-appointment for a similar term as the [1][Prime Minister] may determine:

Provided that the Chairperson or a member may, by writing under his hand addressed to the Chairman, resign from his office:

Provided further that the Chairperson and members shall hold honorary positions.

Explanation.— For the purposes of this section, the expression "misconduct" means conviction for any offence involving moral turpitude and includes conduct prejudicial to good order, political influence or involvement, or unbecoming of a gentleman, or absence from three or more successive meetings of the Council.

(6) For the purpose of exercising jurisdiction under sub-section (3) for grievances of the electronic media employees, in each Council, two non-voting honorary members shall be appointed by the division to which business of this Ordinance stands allocated, one from broadcasters and one from electronic media employees, who shall serve to that extent only.

(7) The Councils shall have the powers to summon the complainant, aggrieved person and the licensee against whom a complaint has been made and call for his or its explanation regarding any matter relating to its operation.

(8) The functions and operation of the Councils shall be such as may be prescribed.

(9) The Councils may recommend to the Authority for imposition of a fine of not less than two hundred thousand rupees and not more than one million rupees against any individual person. The Councils may also recommend to the Authority appropriate action of censure, fine up to two million rupees in respect of a licensee. In case a licensee repeats violation, the Council may recommend the suspension of the licence or prohibition on broadcasting or rebroadcasting or distributing any programme or advertisement against a broadcast media, broadcast station or distribution service operator or person for violation of the provisions of this Ordinance, rules and regulations made thereunder or any terms and conditions of licence and code of conduct for programme content and advertisements as may be prescribed.

(10) The Authority or the Chairman may refer any matter to the Council for appropriate recommendations.

(11) The Council shall verify the content of disinformation on the basis of documentary evidence and make appropriate recommendations to the Authority within a period of thirty days:

Provided that not more than two adjournments shall be entertained by the Council upon an advance application by the licensee or the complainant or any aggrieved person. In case of non-appearance by either party or non-filing of application for adjournment, the Council shall proceed with the matter on the basis of available material and record.

(12) Each Council shall compile and submit the annual report of licensee regarding the compliance of Code of Conduct to the Authority.]

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[1]Subs. by Act No. XXIV of 2026, s.5.

[1]**[27. Prohibition of broadcast media or distribution service operation.**— The Authority shall by order in writing, giving reasons therefore, prohibit any broadcast media or distribution service operator [2][or person] from—

(a) broadcasting or re-broadcasting or distributing any programme or advertisement [2][or expression by any person] if it is of the opinion that such particular programme or advertisement [2][or expression by any person] is against the ideology of Pakistan or is likely to create hatred among the people or is prejudicial to the maintenance of law and order or is likely to disturb public peace and tranquility or endangers national security or is pronographic, obscene or vulgar or is offensive to the commonly accepted standards of decency; or

(b) engaging in any practice or act which amounts to abuse of media power by way of harming the legitimate interests of another licensee or willfully causing damage to any other person [2][:]]

[2][Provided that the Authority after prohibiting the programme or advertisement or expression by any person under clause (a) may refer the matter to the Council of Complaints for appropriate recommendations. The Council, after hearing the concerned licensee or person, as the case may be, may recommend within thirty days to the Authority to take appropriate action as empowered under this Ordinance.]

28. Suspension of [3][broadcast media or distribution service] operation.— A [4][broadcast media or distribution service] operator shall not cease or suspend broadcasting except on account of force majeure or with the prior Approval of the Authority.

29. Power to authorize inspection.— (1) The Authority may authorize any of its officers or its nominees to enter the premises of a [5][broadcast media or distribution service] operator for purposes of inspection [6][* * * *].

(2) A broadcast [7][media station or distribution service premises] shall, at all reasonable times, be open to inspection by an authorized officer under sub-section (1) and the licensee shall provide such officer with every assistance and facility in performing his duties.

(3) The authorized officer shall, within forty-eight hours of the inspection, submit his inspection report to the Authority.

[8][(4) The Authority may authorize any of its officers to undertake investigation, in the manner it may prescribe, in any matter with regard to its functions and to seek any specific information, from any person, which the Authority may deem useful in order to enable it to determine and dispose of such matter.

(5) The Authority or as the case may be the Chairman after issuing a show cause notice to a broadcast media or distribution service may seize its broadcast or distribution service equipment, or seal the premises, which is being used in contravention of the provisions of this Ordinance or the rules made thereunder or any other law:

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[1]Subs. by the Pakistan Electronic Media Regulatory Authority (Amdt.) Act, 2007(Act II of 2007), s.17, for "section 27".
[2]Ins., sub. and added by Act LXI of 2023, s.12.
[3]Subs. by the Pakistan Electronic Media Regulatory Authority (Amdt.) Act, 2007(II of 2007), s.18, for "broadcasting or CTV".
[4]Subs. *ibid*., for "broadcaster or".
[5]Subs. *ibid*., s.19, for "broadcaster or a CTV".
[6]Certain words omitted *ibid*.
[7]Subs. *ibid*., for "or CTV station".
[8]New sub-sections (4), (5) and (6) added *ibid.*

Provided that the equipment shall be returned to the holder of a valid licence after imposing on him such penalty as the Authority may determine.

(6) [1] [* * * * * * *]

[1][29A. Imposition of fine.— The Authority or, as the case may be, the Chairman, after the licensee has been given reasonable opportunity to show cause, impose fine up to one million rupees on a licensee who contravenes any of the provisions of this Ordinance or the rules or regulations or the code of conduct or the terms and conditions of the licence:

Provided that in case of severe violations, the Authority may impose a fine up to ten million rupees on the licensee.

29B. Dues to be recovered as arrears of land revenue.— All dues including outstanding licence fee, annual renewal fee or any other charges including fine as imposed by the Authority shall be recoverable as arrears of land revenue.]

[2][**30. Power to vary conditions, suspend or revoke the licence.—**(1) The Authority may revoke or suspend the licence of a broadcast media or distribution service by an order in writing on one or more of the following grounds, namely:—

(a) the licensee has failed to pay the license fee, annual renewal fee or any other charges including fine, if any;

(b) the licensee has contravened any provision of this Ordinance or rules or regulations made thereunder:

Provided that in the case of revocation of a licence of a broadcast media an opinion to this effect shall also be obtained from the Council of Complaints;

(c) the licensee has failed to comply with any condition of the licence; and

(d) where the licensee is a company, and its shareholders have transferred a majority of the shares in the issued or paid up capital of the company or if control of the company is otherwise transferred to persons not being the original shareholders of the company at the time of grant of licence, without written permission of the Authority.

(2) The Authority may vary any of the terms and conditions of the licence where it deems that such variation is in the public interest.

(3) Except for reason of necessity in the public interest a licence shall not be varied, suspended or revoked under sub-section (1) or sub-section (2) unless the licensee has been given reasonable notice to show cause and a personal hearing.]

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[1]Omitted and Subs. by Act LXI of 2023, ss.13-14.

[2]Subs. by the Pakistan Electronic Media Regulatory Authority (Amdt.) Act, 2007(Act II of 2007), s.21 for "section 30".

[1][**30A. Appeals.**— Any person aggrieved by any decision or order of the Chairman or the Authority may, within thirty days of the receipt therof, prefer an appeal to the High Court within whose territorial jurisdiction the proceedings were initiated and the decision or order has been passed.]

[1][**30B. Jurisdiction of courts barred.—** Jurisdictions of civil courts are barred. Save as otherwise provided by this Act, no court or other Authority shall have jurisdiction to question the legality of anything done or any action taken under this Ordinance, by or at the instance of the Authority.]

[2][**31. Uplinking Facilities**.— (1) No person shall carry out uplinking without a valid Teleport or Satellite TV licence from the Authority;

(2) The Authority may, subject to fulfillment of such conditions, as may be prescribed, issue permission in writing to any party to carry out temporary uplinking from a ground transmission facility to a satellite in order to transmit any programme within or outside Pakistan.]

32. Power to grant exemptions.— The Authority may grant exemptions from any provisions of this Ordinance, where the Authority is of the view that such exemption serves the public interest and the exemptions so granted shall be supported by recording the reasons for granting such exemptions in writing provided that the grant of exemptions shall be based on guidelines and criteria identified in the Rules and that such exemptions shall be made in conformity with the principles of equality and equity as enshrined in the Constitution.

33. Offences and penalties.— (1) Any [3][broadcast media or distribution service] operator or person who violates or abets the violation of any of the provisions of the Ordinance shall be guilty of an offence punishable with a fine which may extend to [4][ten million] rupees.

(2) When such [3][broadcast media or distribution service] operator or person repeats the violation or abetment, such person shall be guilty of an offence punishable with imprisonment for a term which may extend to three years, or with fine, or with both.

(3) Where the violation, or abetment of the violation of any provision of this Ordinance is made by a person who does not hold a licence, such violation shall be punishable with imprisonment for a term which may extend to four years, or with fine, or with both [5][, in addition to the confiscation of the equipment used in the commission of the act.]

[6][(4) Whosoever damages, removes, tampers with or commits theft of any equipment of a broadcast media or distribution service station licensed by the Authority, including transmitting or broadcasting apparatus, receivers, boosters, converters, distributors, antennae, wires, decoders, set-top boxes or multiplexers shall be guilty of an offence punishable with imprisonment which may extend to three years, or with fine, or both.]

[7][**33A. Officers of Federal, Provincial and Local Governments to assist Authority.**— The officers of Federal Government, Provincial Governments and Local Governments including the Capital Territory Police and the Provincial Police shall assist the Authority and its officers in the discharge of their functions under the provisions of this Ordinance and the rules and regulations made thereunder.

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[1]Subs. and Ins. by Act LXI of 2023, ss.15-16
[2]Subs. by the Pakistan Electronic Media Regulatory Authority (Amdt.) Act, 2007(Act II of 2007), s.23, for "section 31".
[3]Subs. ibid., s.24, for "broadcoaster or CTV".
[4]Subs. *ibid*., for "one million".
[5]Added *ibid.*
[6]New sub-section (4) added *ibid.*
[7]New sections 33A and 33B ins. ibid., s.25.

33B. Warrants for search.— (1) Where on information furnished by the Authority, the Court has reason to believe that any unlicensed broadcast media or distribution service is being owned, controlled or operated or its equipment is being kept or concealed, it may issue a search warrant and the person to whom such search warrant is directed, may enter the premises where such unlicensed broadcast media or distribution service is being owned, controlled, operated or provided or its equipment is being kept or concealed, or carry out search and inspection thereof and seize all or any equipment therein.

(2) Any equipment of a broadcast media station seized under sub-section (1) having no ostensible owner shall vest in the Authority.]

34. Cases to be initiated on complaint.– No court shall take cognizance of any offence under [1][sub-section (1) or (2) of section 33 of] this Ordinance except on a complaint in writing by the Authority or any officer authorized by it.

[1][**34A. Offences to be compoundable and cognizable.**– The offences under sub-sections (3) and (4) of section 33 of this Ordinance shall be compoundable and cognizable.]

35. Cognizance of offences etc.— (1) No court inferior to that of a Magistrate of the first class shall try an offence punishable under this Ordinance.

(2) Notwithstanding anything contained in section 32 of the Code of Criminal Procedure, 1898 (Act V of 1898), it shall be lawful for any Magistrate of the first class to pass any sentence authorized by this Ordinance even if such sentence exceeds his powers under the said section 32.

36. Offences by companies.— (1) Where any offence under this Ordinance has been committed by a person who at the time the offence was committed was in charge of and was responsible to the company for the conduct of the business of the company as well as the company itself shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly.

(2) Where the person guilty of an offence under this Ordinance, is a company, corporation or firm, every director, partner and employee of the company, corporation or firm shall, unless he proves that offence was committed without his knowledge, or consent, shall be guilty of the offence and shall be liable to be proceeded against and punished accordingly.

37. Ordinance overrides other laws.— (1) The provisions of this Ordinance shall have effect notwithstanding anything to the contrary contained in any other law for the time being in force, or any contract, agreement or any other instrument whatsoever:

Provided that—

[2][(a) the national broadcasters and state-owned enterprises shall continue to be regulated by the relevant laws; and]

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[1]Ins. by the Pakistan Electronic Media Regulatory Authority (Amdt.) Act, 2007(Act II of 2007), ss. 26-27.
[2]Subs. by Act LXI of 2023, s.17.

(b) other existing private broadcasters or CTV operators who had been granted respective monopolies in multi-modal distribution system, cable TV and in FM radio shall henceforth be regulated by this Ordinance except in respects where specific exemptions are granted by the Authority.

38. Indemnity.— No suit, prosecution or other legal proceeding shall lie against the Federal Government or any Provincial Government or local authority or any other person exercising any power or performing any function under this Ordinance or for anything which is in good faith done or purporting or intended to be done under this Ordinance or any rule made thereunder.

39. Power to make rules.— (1) The Authority may, with the approval of the [1][Federal] Government, by notification in the official Gazette, make rules to carry out the purposes of this Ordinance.

(2) In particular, and without prejudice to the generality of the fore-going power, such rules may be provided for all or any of the following matters, namely:—

(a) to prescribe the forms for the licences for working, installing, operating, or dealing in transmission broadcast or distribution apparatus and the manner in which applications for the licences shall be granted;

(b**)** to prescribe the terms and conditions of the licence including fee to be charged in connection with the issuance of licences and related matters, [2][*]

[2][(c) to prescribe standards and measures for the establishment of broadcast media stations, installation of broadcasting, distribution service or teleporting equipment, transmitters, receivers, boosters, converters, distributors and common antennae;

(d) to prescribe terms and conditions for the broadcast media or distribution service operators who own, control or operate more than one media enterprise; and

(e) to define the circumstances constituting undue concentration of media ownership and abuse of powers and anti-competitive practices by media companies.]

[3]**[39A. Power to make regulations.—** The Authority may, by notification in the official Gazette, make regulations not inconsistent with the provision of this Ordinance and the rules for carrying out the purposes of this Ordinance in respect of its internal matters or as such required by any provision of this Ordinance.]

40. Removal of difficulties.— If any difficulty arises in giving effect to the provisions of this Ordinance, the Authority may make such order, not inconsistent with provisions of this Ordinance, as may appear to it to be necessary for the purpose of removing the difficulty.

Date: 07.04.2026

[1] Ins. by Act No. XXIV 2026, s.6.
[2] Omitted and subs. by the Pakistan Electronic Media Regulatory Authority (Amdt.) Act, 2007(Act II of 2007), s. 28.
[3] Ins. by Act LXI of 2023, s.18.

THE NEWSPRINT CONTROL ORDINANCE, 1971

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THE PAKISTAN CODE

[1]THE NEWSPRINT CONTROL ORDINANCE, 1971

ORDINANCE No. XI of 1971

[26th April, 1971]

An Ordinance to provide for regulating the keeping, storage, distribution, disposal, acquisition and use of newsprint.

WHEREAS it is expedient to provide for regulating the keeping, storage, distribution, disposal, acquisition and use of-news-print and for matters ancillary thereto ;

AND WHEREAS the national interest of Pakistan in relation to the achievement of uniformity requires Central Legislation in the matter;

NOW, THEREFORE, in pursuance of the Proclamation of the 25th day of March, 1969, read with the Provisional Constitution Order, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.— (1) This Ordinance may be called the Newsprint Control ordinance, 1971.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Ordinance to override other laws. This Ordinance shall have effect notwithstanding anything to the contrary contained in the [2][Price Control and Prevention of Profiteering and Hoarding Act, 1977 (XIXX of 1977)] or any order or other instrument made or issued thereunder or any other law for the time being in force.

3. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,

(a) "daily newspaper" means a newspaper which is published not less than five days a week ;

(b) "newspaper" means any publication printed on newsprint and published at regular intervals of not more than a month ; and

(c) "newsprint" means printing paper, white or coloured, in reels or in sheets, unsized or soft sized, the fiber content of which comprises not less than 70 per cent of mechanical wood pulp and which weights between 50 to 54 grams per square meter.

4. Regulation of use of newsprint etc. Except with the prior permission in writing of the [3][Federal Government], no person shall :—

(a) use newsprint for printing of publishing any newspaper started after the commencement of this Ordinance, ;

(b) use newsprint for printing or publishing any newspaper in excess of such quantity as the [2][Federal Government] may, by general or special order, prescribe in respect of such newspaper ; or

[1]Validated by the Validation of Laws Act. 1975 (63 of 1975), s. 2 and Sch.,
[2]Subs. by Federal Laws (revision and Declaration) Ordinance 1981 (27 of 1981. .s.3 and II sch.,
[3]Subs. by P. O. No. 4 of 1975, Art. 2 and Table.

(c) use newsprint for printing or publishing any book, pamphlet, poster or other thing which is not a newspaper.

5. Dealing in newsprint.—(1) The [1][Federal Government] may, by notification in the official Gazette, specify the dealers who shall be approved dealers of newsprint for the purposes of this Ordinance.

(2) Subject to an order under sub-section (3), upon the issue of a notification under sub-section (1), no dealer shall, except with the prior permission in writing of the [1][Federal Government], sell or dispose of newsprint to any person other than—

(a) an approved dealer; or

(b) a person who requires the newsprint—

(i) for printing or publishing any newspaper started before the commencement of this Ordinance, or

(ii) for printing or publishing any newspaper started after the commencement of this Ordinance, where the use of newsprint for printing or publishing such newspaper has been permitted under clause (a) of section 4, or

(iii) for printing or publishing any book, pamphlet, poster or other thing which is not a newspaper, where the use of newsprint for such printing or publishing has been permitted under clause (c) of section 4.

(3) The [1][Federal Government] may, by order in writing, require any dealer to sell to such person as is referred to in clause (b) of sub-section (2) such quantity of newsprint as may be specified in the order and may issue and incidental or supplementary instructions in regard to such sale.

THE PAKISTAN CODE

6. Fixation of price.—(1) The [1][Federal Government] may, by notification in the official Gazette, fix the maximum price above which newsprint shall not be sold and different prices may be fixed for different localities for different varieties of newsprint or for newsprint of different origins.

(2) No person shall buy or sell or offer to buy or sell newsprint at a price above the maximum price fixed under subsection (1).

7. Declaration of stock held. Every dealer and every person holding stocks of news-print shall, within a period of seven days from the commencement of this Ordinance, submit to the [1][Federal Government] or an officer authorised by it in this behalf a declaration of the stocks of newsprint held by him at such commencement.

[1]Subs. by P. O. No. 4 of 1975, Art. 2and Table.

8. Declaration by importer. Every importer of newsprint shall, within seven days of the clearance of the newsprint from Customs, submit to the [1][Federal Government] or an officer authorised by it is this behalf a declaration specifying the particulars of newsprint so cleared by him or on his behalf.

9. Maintenance of records of sale, etc. The [1][Federal Government] may direct a dealer or an importer "or a person using newsprint to maintain records of all sales, purchases, imports and uses of newsprint and may prescribe the form in which such record shall be maintained.

10. Power to call for information, etc.—(l) The [1][Federal Government] may require the proprietor of, or any other person concerned with, any printing press or newspaper, daily newspaper, book, pamphlet or poster or any person carrying on or concerned with any business or undertaking which involves the sales, distribution, storage or use of newsprint, to give any information in his possession or within his knowledge with respect to any transaction relating to newsprint, and the person so required shall give the required information to the best of his knowledge and belief.

(2) No person shall mutilate, deface, tamper with, conceal or destroy any book or document relating to any transaction referred to in sub-section (1).

(3) The [1][Federal Government] may, by order in writing, authorise any officer or other person, to inspect any books or documents referred to in sub-section (2) in the possession of any of the persons referred to in sub-section (1) and such person shall, whenever required to do so, permit the inspection to be made without any hindrance, evasion or concealment.

(4) The [1][Federal Government] may, by order in writing, authorise any officer or other person to enter and search or cause to be entered and searched any premises, or place where he has reason to believe that anything in contravention of this Ordinance has taken place or is likely to take place, and such officer or person may seize any newsprint or other articles in respect of which he has reason to believe that any such contravention has been committed or is about to be committed.

THE PAKISTAN CODE

11. Penalty. Whoever contravenes any provision of this Ordinance or of any order made, notification issued or direction given under this Ordinance shall be punishable with imprisonment for a term which may extend to three years, or with fine, or with both.

12. Delegation of powers. The [1][Federal Government] may, by order in writing, direct that any of its powers and functions under this Ordinance shall, in relation to such matters and subject to such conditions, if any, as may be specified in the order, be exercisable also by an officer specified in the order.

41318 Date: 11-11-2024

[1]Subs. by P. O. No. 4 of 1975, Art. 2 and Table.